No. _____

In the Supreme Court of the United States

SLIDEWATERS LLC,

Petitioner,

v.

WASHINGTON STATE DEPARTMENT OF LABOR AND INDUSTRIES, AND, GOVERNOR JAY INSLEE, IN HIS OFFICIAL CAPACITY

Respondents.

On Petition for Writ of Certiorari to the United States Court of Appeals for the Ninth Circuit

PETITION FOR WRIT OF CERTIORARI

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QUESTION PRESENTED

The Washington State Legislature delegates all police power and legislative authority to its governor in times of emergency. This delegation is in no way limited by any intelligible principle beyond the simple phrase "that the governor must terminate said state of emergency proclamation when order has been restored in the area affected." RCW 43.06.210.

As seen throughout the COVID-19 pandemic, this blend of legislative and executive authority has been unfettered, permitting the governor to extend the self-proclaimed state of emergency without any recourse, and grant any authority to state agencies to make and execute laws as they see fit. A panel of the Ninth Circuit upheld this limitless delegation as perfectly compatible with separation of powers principles.

The Question Presented in this Petition is:

Does a state legislature's delegation of unlimited and inherently legislative police power to a state executive violate the separation of powers, even given a perpetual state of emergency?

PARTIES TO THE PROCEEDINGS AND RULE 29.6

Petitioner Slidewaters LLC was the plaintiff-appellant in all proceedings below.

Respondents Washington State Department of Labor and Industries and Jay Robert Inslee, Governor, in his official capacity, were the defendants-appellees in all proceedings below.

CORPORATE DISCLOSURE STATEMENT

Slidewaters LLC is a limited liability company organized under the laws of Washington. It has no parent corporation, and no publicly held company owns 10% or more of its stock.

RULE 14.1(B)(III) STATEMENT OF ALL RELATED CASES

The proceedings in the trial and appellate courts identified below are directly related to the above-captioned case in this Court.

Slidewaters LLC v. Wash. State Dep't of Labor, No. 2:20-cv-0210-TOR (E.D. Wash. July 14, 2021).

Slidewaters LLC v. Wash. State Dep't of Labor, No. 20-35634 (9th Cir. July 8, 2021).

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PETITION FOR WRIT OF CERTIORARI

Petitioner Slidewaters LLC respectfully petitions this Court for a Writ of Certiorari to review the judgment of the United States Court of Appeals for the Ninth Circuit.

OPINIONS

The panel opinion of the Ninth Circuit Court of Appeals is published and available at 4 F.4th 747 (9th Cir. 2021) and included as Appendix 1a. The decision of the district court is unpublished at 2020 WL 3979661 (E.D. Wash. July 14, 2020) and included at Appendix 25a.

JURISDICTION

The district court had jurisdiction over this case pursuant to 28 U.S.C. §§ 1331, 1441 and 1442. The district court denied the Plaintiffs motion for preliminary injunction and converted it to a motion for permanent injunction dismissing the case on July 14, 2020, and entered final judgment on July 14, 2021. Slidewaters LLC filed a timely appeal to the Ninth Circuit Court of Appeals. On July 8, 2021, the Ninth Circuit affirmed the district court's opinion. The Ninth Circuit issued its mandate on July 30, 2021. This Court has jurisdiction under 28 U.S.C. § 1254(1).

CONSTITUTIONAL AND STATUTORY PROVISIONS AT ISSUE

U.S. Const., Art. IV, Sec. 4 provides: "The United States shall guarantee to every state in this Union a Republican form of government […]"

Wash. State Const., Art. II, Sec. 1 provides in part: "The legislative authority of the state of Washington shall be vested in the legislature, consisting of a senate and house of representatives,

which shall be called the legislature of the state of Washington, […]"

RCW 43.06.220(1) provides in relevant part: "he governor after proclaiming a state of emergency and prior to terminating such, may, in the area described by the proclamation issue an order prohibiting: […] (h) Such other activities as he or she reasonably believes should be prohibited to help preserve and maintain life, health, property or the public peace."

RCW 43.06.010(12) provides: "The governor may, after finding that a public disorder, disaster, energy emergency, or riot exists within this state or any part thereof which affects life, health, property, or the public peace, proclaim a state of emergency in the area affected, and the powers granted the governor during a state of emergency shall be effective only with the area described in the proclamation."

RCW 43.06.210 provides: "The proclamation of a state of emergency and other proclamations or orders issued by the governor […] shall be in writing and shall be signed by the governor and shall be filed with the secretary of state. A proclamation of a state of emergency is effective upon the governor's signature. […] The state of emergency shall cease to exist upon the issuance of a proclamation of the governor declaring its termination: PROVIDED, That the governor must terminate said state of emergency proclamation when order has been restored in the area affected."

INTRODUCTION AND SUMMARY OF REASONS TO GRANT THE PETITION

As succinctly stated by James Madison over two hundred years ago, "[n]o political truth is certainly of greater intrinsic value, or is stamped with the

authority of more enlightened patrons of liberty…[than that] [t]he accumulation of all powers, legislative, executive, and judiciary, in the same hands, whether of one, a few, or many, and whether hereditary, self-appointed, or elective, may justly be pronounced the very definition of tyranny." The Federalist No. 47 (James Madison). Herein lies one of the most precious guarantees of individual liberty: the separation of powers doctrine. To prevent tyranny by protecting "the liberty and security of the governed [,]" *Metro. Wash. Airports Auth. v. Citizens for the Abatement of Aircraft Noise, Inc.*, 501 U.S. 252, 272 (1991), the federal and state constitutions divide all government power into three, distinct branches. *See e.g.,* Wash. State Const., Art. II, Sec. 1. In this way, individual liberty is protected by more than "parchment barriers." *See Free Enter. Fund v. PCAOB*, 561 U.S. 477, 501 (2010).

The instant case involves a blatant violation of this vital separation of powers principle, and a predictable resulting abuse of government power and violation of individual liberty. The Washington State Legislature delegated the full scope of its inherently legislative police power to the governor in response to the perpetual COVID-19 pandemic, with no limit or intelligible principle to cabin the exercise of that authority. In other words, the governor's ability to make and execute law was limited only by his own preferences, rather than the Rule of Law. Addressing Slidewater's argument that this delegation was an inherent violation of the separation of powers enshrined in the Washington Constitution, the Ninth Circuit Court of Appeals relies heavily on the fact that an emergency justified this unfettered mixing of governmental powers. This issue, especially in the

context of COVID-19, presents important federal questions appropriately resolved by this Court.

Included in the federal Constitution's guarantee of a republican form of government to the citizenry of the individual states, U.S. Const. Art. IV, Section 4, is a guarantee of the rule of law, rather than the arbitrary rule of a single individual. U.S. Const. Preamble ("We the People of the United States, in Order to form a more perfect Union, establish Justice, insure domestic Tranquility, provide for the common defense, promote the general Welfare, and secure the Blessings of Liberty to ourselves and our Posterity […]"). While emergency situations of limited duration can justify the limited relaxation of constitutional norms, they do not justify legislatures delegating their *entire* legislative police power to a single individual or small body of individuals in the executive branch. In this case, the Washington State Legislature delegated the full scope of its inherently legislative police power to the governor, the only limitation being the will of one man. It is within this Court's purview to determine the extent to which a state legislature can delegate its police power and authority to another branch of government, even during a time of emergency with seemingly no end in sight.

This issue has been raised time and again throughout the course of the COVID-19 pandemic, with this Court taking on several questions of the extent to which a state executive can infringe upon citizens' rights during an emergency pursuant to a delegation of authority by a state legislature. *See e.g., Roman Catholic Diocese of Brooklyn v. Cuomo*, 141 S. Ct. 63 (2020); *Tandon v. Newsom*, 141 S. Ct. 1294 (2021); *South Bay United Pentecostal Church, et al. v.*

Newsom, et al., 141 S. Ct. 716 (2021) (Mem.); *Harvest Rock Church, Inc., et al. v. Newsom*, 141 S. Ct. 1289 (2021) (Mem.). The instant Petition is not only the ideal vehicle to settle the specific issues in Washington State, but to protect the liberty of future generations facing such a crisis.

The Court should grant the Petition to determine whether the unfettered delegation of inherently legislative state police power can be squared with the guarantee of the separation of powers in the Washington Constitution.

STATEMENT OF THE CASE

1. Background on Slidewaters

Petitioner Slidewaters LLC is a family-owned and operated waterpark in Lake Chelan, Washington, owned by cousins Burke and Robert Bordner. ER4 068. Slidewaters operates an extremely tight 100-day "season" each year between Memorial Day and Labor Day. ER4 068. During its operating season, Slidewaters employs nearly one hundred and fifty season employees, with a majority of the employees being young adults between the ages of fourteen and twenty-five. ER4 068. Slidewaters also employs a skeleton crew of year-round staff to maintain the business during the off-season. ER4 068. Slidewaters makes nearly all of the income to sustain the business for the entire year during the summer season. ER4 068. As such, Slidewaters critically depends upon the operation of the waterpark throughout the 100 day summer season. ER4 068.

2. Initial Outbreak of COVID-19

COVID-19 is a respiratory illness caused by a new, or "novel" coronavirus. Coronaviruses cause respiratory illnesses, such as the common cold.

COVID-19 was first confirmed in Washington State on January 21, 2020. ER4 068. COVID-19 was declared a pandemic at the beginning of March 2020 by the World Health Organization Director-General during a media briefing.

3. Washington State's Response

Washington State Governor Jay Inslee issued a state of emergency throughout all thirty-nine counties in Washington at the end of February 2020. ER4 068. The Governor issued the Proclamation 20.05 claiming authority pursuant to Chapters 38.08, 38.52, and 43.06 RCW. ER4 068. At this time Governor Inslee proclaimed that COVID-19 was a "public disaster" pursuant to RCW 43.06.210(12) and decreed that the Washington State Comprehensive Emergency Management Plan be implemented. ER4 068. Additionally, the Governor proclaimed that state agencies are directed to utilize state resources and do everything reasonably possible to assist affected counties to respond to and recover from COVID-19; all of which was put into effect without regard for the Washington State Legislature. ER4 068-69.

Approximately three months later, at the end of May 2020, the Department of Labor and Industries ("LNI") filed an Emergency Rule with the State of Washington Office of Code Reviser solely to enable state enforcement of the Governor's proclamation. ER4 069. That rule, entitled "2019 Novel Coronavirus Prohibited Business Activities and Conditions for Operations" became immediately effective as Washington Administrative Code 296-800-14035. ER4 069. The emergency rule prohibits employers from allowing employees to perform work where a business activity is prohibited by an "emergency proclamation." ER4 069. LNI posted a notice stating

that "[i]f employers are found to be defying the Governor's order, they'll be informed and directed to close or adjust operations immediately. If they do not, they'll face a workplace safety citation that could carry a fine of nearly $10,000 or more." ER4 069. LNI cited Proclamation 20.05, RCW 49.17.010, 49.17.040, 49.17.050, and 49.17.060, as the purported bases for LNI's authority to issue this "emergency" rule. ER4 069.

The following day, May 27, 2020, Gov. Inslee announced the expansion of "Safe Start – Washington's Phased Reopening Plan," as Proclamation 20.05 was set to expire on May 31, 2020. Directly following the expiration of Proclamation 20.05, Gov. Inslee issued a new proclamation (hereinafter, "Proclamation 20-25.4") (Proclamations 20-05 and 20-25.4 are hereinafter collectively referred to as the "Proclamations"), on June 1, 2020. ER 4 069. In Proclamation 20-25.4, the Governor "continued" a State of Emergency for Washington State. ER 4 070.

4. Procedural History

In the Spring of 2020, Slidewaters LLC's owners began preparations to open Slidewaters for the 2020 season. The Bordners carefully crafted a COVID-19 specific health and safety plan based on recommendations from the Center for Disease Control ("CDC"). The Washington State Department of Health ("DOH"), and the Chelan-Douglas Health District ('CDHD"). ER3 113. Slidewaters waited nearly on month for word that they could open their business during their extremely restrictive 100-day season, with no meaningful contact or communication from the State and its agencies. Shortly thereafter, Slidewaters was able to get into contact with a CDHD environmental inspector who approved Slidewaters to

open operating at fifty percent capacity, and strict adherence to their COVID-19 health and safety plan. ER3 113-114. Slidewaters subsequently opened. However, due to the limited nature of the approval to open and the irreparable harm Slidewaters was suffering as a result, Slidewaters filed suit in Chelan County Superior Court arguing that state law did not authorize the Governor, the state agency, or the executive branch to unilaterally declare a state of emergency throughout Washington. ER4 001-035.

The State Defendants removed the dispute under 28 U.S.C. § 1443, based on a single due process claim pursuant to the United States Constitution (as well as the state constitution). ER3 269-272. Slidewaters then filed for a Temporary Restraining Order which the District Court, despite its finding that Slidewaters would suffer irreparable injury, nevertheless denied. ER4 079-089; ER1 038-052. Following the denial of the temporary restraining order, Slidewaters filed for a Motion for Preliminary Injunction, which the District Court subsequently converted to a Motion for Permanent Injunction on a mere four (4) days' notice, after which the lower court dismissed Slidewaters' claims, ruling that the substantive due process claims were precluded by *Jacobson v. Commonwealth of Massachusetts*, 197 U.S. 11, 24-25 (1905). ER3 111-123; ER1 020-033. Slidewaters filed a timely appeal to the Ninth Circuit Court of Appeals. The Ninth Circuit affirmed the decision of the district court following briefing, and oral argument.

In its opinion, the Ninth Circuit only gave cursory attention to Slidewaters separation of powers arguments, based on the guarantee provided by the Washington Constitution. In that brief discussion, the

Ninth Circuit panel held that the Washington State Legislature did not act impermissibly when it seemingly gave unlimited legislative police power to the governor, limited only by his own discretion, and for the duration of a seemingly perpetual "crisis." The panel additionally held that the actions of the governor and L&I to issue proclamations and emergency rules based on that limitless delegation was not impermissible.

This Petition follows that opinion.

REASONS FOR GRANTING THE PETITION

I

POLICE POWER IS LEGISLATIVE, AND MAY ONLY BE DELEGATED IN LIMITED CIRCUMSTANCES

A. Police Power is Inherently Legislative

In general, police power is the fundamental ability of a government to enact laws to coerce citizens for the public good. Black's law dictionary defines police power as the "inherent and plenary power of a sovereign to make all laws necessary and proper to preserve the public security, order, health, morality, and justice." *Police Power*, Black's Law Dictionary (11th Ed. 2019). Black's definition for police power continues that "[i]t is a fundamental power essential to government, and it cannot be surrendered by the legislature […]" *Id.* The authority to enact laws is vested in the legislature, a body of representatives elected by the citizens of that state. Wash. State Const., Art. II, Sec. 1.

The police power, a fundamental power of the state government, is thus an inherent power of the People's representative in the legislature, rather than a

concurrent branch of state government. As this Court has recognized, "[t]he States unquestionably do retain a significant measure of sovereign authority." *U.S. Term Limits, Inc. v. Thornton*, 541 U.S. 779, 801 (1995) (*citing Garcia v. San Antonio Metro. Transit Auth.*, 469 U.S. 528, 549 (1985)). But this sovereign authority however is vested in a state legislature elected by the citizens of that State, not in the governor - the state executive.

The Tenth Amendment to the Constitution provides that "[t]he powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people." U.S. Const. amend X. The Tenth Amendment establishes the basis for the principle that the state legislative power is plenary. The legislative authority to enact bills, act or law in Washington State is vested in the Washington State Legislature. Wash. State Const., Art. II, Sec. 1. Thus, any exercise of the legislative authority pursuant to the police power, but be necessarily limited in scope, duration, or both.

B. The Nondelegation Doctrine Applies

The nondelegation doctrine is rooted in the principle of separation of powers that underlies the tripartite system of government that the United States, and individual state governments, were founded upon. *See Mistretta v. U.S.*, 488 U.S. 361, 371 (1989). The nondelegation doctrine serves three extremely crucial functions, all of which are exemplified here in the context of the delegation of the full scope police powers to the governor by the Washington State Legislature without any intelligible principle or other limitations.

First, the nondelegation doctrine ensures that important choices of social policy are made by the legislature to encourage orderly governmental administration. *Industrial Union Dept., AFL-CIO v. American Petroleum Institute*, 448 U.S. 607, 685 (1980) (Rehnquist, concurring). Second, to the extent that delegation of authority is necessary, it provides the delegee with an "intelligible principle" to guide the exercise of the delegated authority. *Panama Refining Co. v. Ryan*, 293 U.S. 388, 430 (1935). Third, the nondelegation doctrine ensures that the courts reviewing any such delegation will have ascertainable standards against which they can test. *See Arizona v. California*, 373 U.S. 546, 626 (1983) (Harlan, J., dissenting in part). Therefore, the delegation of authority is impermissible when there is no limitation to this transfer of authority.

C. Permissible Delegation Must be Limited

This Court has recognized that the separation of powers principle and related nondelegation doctrine do not prevent the legislatures from obtaining assistance from its coordinate branches. *See, e.g., Lichter v. United States*, 334 U.S. 742, 785-786, (1948) (upholding delegation of authority to determine excessive profits); *American Power & Light Co. v. SEC*, 329 U.S. 90, 105 (1946) (upholding delegation of authority to Securities and Exchange Commission to prevent unfair or inequitable distribution of voting power among security holders); *FPC v. Hope Natural Gas Co.*, 320 U.S. 591, 600 (1944) (upholding delegation to Federal Power Commission to determine just and reasonable rates); *National Broadcasting Co. v. United States*, 319 U.S. 190, 225-226 (1943) (upholding delegation to Federal Communications Commission to regulate broadcast

licensing "as public interest, convenience, or necessity" require). However, these principles do require that "in determining what [the legislature] may do in seeking assistance from another branch, the extent and character of that assistance must be fixed according to common sense and the inherent necessities of the government co-ordination." *Mistretta*, 488 U.S. at 372 (*citing* Chief Justice Taft in *J.W. Hampton, Jr., & Co. v. United States*, 276 U.S. 394 (1928)).

Put another way, the legislative branch is required to put forth an "intelligible principle" to which the person or body authorized to exercise the delegated authority is directed to conform and doing so removes the legislative act from an unconstitutional delegation of authority. *Mistretta*, 488 U.S. at 372. In outlining the legislative authority to delegate powers, this Court has articulated that the legislative act must "clearly delineate [] the general policy, the public agency which is to apply it, and the boundaries of this delegated authority." *Id.* at 372-73 (*citing American Power & Light Co.*, 329 U.S. 90 (1946)). These intelligible principles are the bare minimum necessary for a legislative action of delegation to pass muster under the separation of powers principles and the nondelegation doctrine.

In *A.L.A. Schechter Poultry Corp. v. United States*, 295 U.S. 495 (1935) and *Panama Refining Co.*, 293 U.S. 388 (1935), this Court concluded that Congress - the legislative branch - had failed to articulate any policy or standard that would serve to confine the discretion of the authorities to whom Congress had delegated power. The authority granted to the executive branch in both cases was broad, resulting in the President issuing an executive order

further delegating authority to federal agencies to exercise control over these businesses. *A.L.A. Schechter*, 295 U.S. at 526; *Panama Refining Co.*, 293 U.S. at 406-08. As explained by the Court in both cases, Congress prescribed no limit to the authority which the executive branch possessed. The delegation authorized the executive to pass laws to impact the industries in question, with no check on the powers delegated; the same of which exists in Washington state with regard to "states of emergency."

The Court was clear in *Panama* when it stated "[s]o far as this section is concerned, it gives to the President an unlimited authority to determine the policy and to lay down the prohibition, or not to lay it down, as he may see fit. And disobedience to his order is made a crime punishable by fine and imprisonment." 293 U.S. at 415. The legislative branch placed the entirety of its unique powers into the hands of the executive and created no way for this delegation to be curbed, and this was an unlawful delegation in violation of the nondelegation doctrine.

II

WASHINGTON LEGISLATURE'S WHOLESALE DELEGATION OF POLICE POWER WAS UNCONSTITUTIONAL

A. The Washington Legislature's delegation of inherently legislative police power was without <u>any</u> limitation

If there is one principle undergirding the separation of powers doctrine and resulting non-delegation doctrine, protected for the citizens of the states through the Guarantee Clause of the federal Constitution, is that the rule of law requires something more than the arbitrary rule of a single

individual. Yet that is exactly what has occurred in Washington State and presents an important federal question necessitating this Court's intervention.

As Washington State legislature's delegation has been seen throughout the course of the pandemic, the only true limiting factor on the delegation is the governor's individual determination that a state of emergency no longer exists because order has been restored. RCW 43.06.210(12). This narrow limitation provides a loophole, however, permitting the determination to be up to the sole discretion of the executive, with no intelligible principle for the judicial branch to address the exercise of the power.

There has been limited uses of this authority in Washington State's history, as is similarly seen in numerous states throughout the country. Specifically, in Washington State, the primary case addressing the delegation of the police powers was *Cougar Business Owners Ass'n v. State* which followed the Mount St. Helens eruption in early 1980. 97 Wn.2d 466 (1982). There the Governor exercised the police power for a total of 181 days directly following the beginning, subsequent eruption, and aftermath of Mount St. Helens. *Id.* at 468. The state of emergency here has lasted, as of filing, 642 days. Any attempts to limit the authority of the governor after his declaration of a state of emergency were either circumvented, or nonexistent following the start of the COVID-19 pandemic.

Should the delegation of the police powers to the executive be a lawful delegation, it cannot be permitted to stand that just because an individual executive finds that there is still a state of emergency that he or she can retain authority granted through a limited transfer. There must be limits to this

authority, and the belief that an emergency circumvents all need for limitation is a violation of the separation of powers principle. Thus, this case is the ideal vehicle for this Court to settle the important federal question of the proper limits of a state legislature's authority to delegate its inherently legislative police powers to a state executive.

B. A State of Emergency Does Not Permit Unfettered Delegation of Police Powers

The concept that an emergency permits the legislative branch to simply hand the proverbial keys to the castle to the executive to do as he or she sees fit until some arbitrary deadline of the executive's choosing flies in the face of the separation of powers principle. The Washington State Constitution was designed to protect the citizens of this state, primarily through the guarantee of the separation of powers. This includes during periods of emergency. "The constitution was made for times of commotion. In the calm of peace and prosperity there is seldom great injustice. Dangerous precedents occur in dangerous times. It then becomes the duty of the judiciary to calmly poise the scales of justice, unmoved by the arm of power, undisturbed by the clamor of the multitude." *U.S. v. Bollman*, 1 D.C. 373, 24 F. Cas, 1192 (D.C. Cir. 1807). This applies with equal force to state charters.

The lower court's opinion not only affirms, but also encourages a sabbatical of the separation of powers doctrine and promise of the Guarantee Clause that state citizens will enjoy the protection of the rule of law, rather than the arbitrary rule of a single individual. Permitting and encouraging state legislatures to simply pass off their unique democratic authority to a small individual or group of individuals creates dangerous precedent. "[E]ven in a pandemic,

the Constitution cannot be put away and forgotten." *Roman Catholic Diocese of Brooklyn*, 141 S. Ct. at 67. Further still, "[e]ven if the Constitution has taken a holiday during this pandemic, it cannot be a sabbatical." *Id.* Permitting for any period of time the delegation of authority to another branch of government leads to opportunities for gross violations of civil rights because there is no intelligible standard to protect the rights of those subject to the unlawful delegation of authority. *See e.g., Korematsu v. United States*, 323 U.S. 214 (1944).

C. The perpetual COVID-19 "state of emergency" is an additional reason to question the Washington Legislature's unlimited delegation of the police power

Governor Inslee issued a state of emergency at the end of February 2020. The Governor did this under the authority delegated to him by the Washington State Legislature, RCW 43.06.210. Since that initial declaration there has been no limit on the Governor's authority to make laws, encourage enforcement by state agencies, punish the citizens of Washington with fines and loss of businesses, and generally continue to wield unfettered authority. Any limits on the authority delegated to the governor have proved to be insufficient to result in any meaningful limitation on the governor's authority.

Neither time, nor a requirement to end the emergency when order is restored, have resulted in the Governor relinquishing this power. *See* RCW 43.06.210, RCW 43.06.220. Further, the statute as set forth by the Washington State legislature provides no requirements that the Governor prove any basis for the declaration of a state of emergency. As has been seen in Washington State since 2020, the Governor

has simply relied upon the novelty of the coronavirus to permit continued use of this power. The nondelegation doctrine does not permit the legislature to pass this authority off on the executive without intelligible principles for the limitation of such delegation.

III

THIS CASE IS AN IDEAL VEHICLE TO SETTLE LINGERING CONSTITUTIONAL QUESTIONS REGARDING COVID-19

Finally, the Court should consider accepting the instant Petition to settle lingering issues implicated by the COVID-19 pandemic, for which there is apparently no end in sight, and accordingly, no end to the ability or desire of state officials to exercise their authority over citizens in Washington State and across the country.

The case cited *ad nauseam* throughout the pandemic has been *Jacobson v. Commonwealth of Massachusetts*, a decision from 1905 which addressed questions of the validity under the Constitution of the United States of certain provisions of a Massachusetts statute relating to vaccinations for smallpox. 197 U.S. 11 (1905). Raised initially by the Chief Justice at the start of the COVID-19 pandemic as a basis to encourage trust in the executives within each state to best guard and protect the citizens within the state. *South Bay United Pentecostal Church*, 140 S. Ct. 1613 (Mem.) (Roberts, J., concurring). The case has subsequently been used, as aptly pointed out by Justice Gorsuch in his concurrence in *Roman Catholic Diocese of Brooklyn*, to cut the "Constitution loose during the pandemic." 141 S. Ct. at 70 (2020). Yet, the reliance, throughout

the country, upon *Jacobson* ignores the nuance between the authority of the legislature to lawfully enact laws to protect the health and welfare of its citizens as was seen in *Jacobson*, and the unlawful delegation of its police powers to the executive within a state for an indeterminate period. The Massachusetts legislature in *Jacobson* provided narrow and limited options to a small, specific question of mandatory smallpox vaccinations. 197 U.S. 12-14. Any imposition was narrowly tailored, and specifically set forth by the legislature itself. *Id.* at 12. The legislature in *Jacobson* did not delegate this authority to the executive or judicial branch of government but retained the authority itself to exercise its police powers. *Id.*

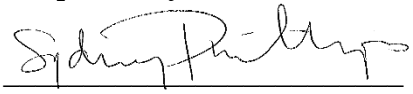
It is unreasonable for courts across this country to rely on *Jacobson* as the basis to say, in effect, that there is no limitation on the authority that can be delegated to the executive in times of an emergency. To use *Jacobson* in such a manner is to do disservice to the opinion and discussion of the Court at that time. There is no basis in the Constitution, or in this Court's jurisprudence to permit such a use of *Jacobson*. The instant Petition is the ideal vehicle to consider and clarify the scope of *Jacobson*, and potentially, prevent the gross abuse of government power for generations of future Americans facing the same or similar public health "crisis."

CONCLUSION

The petition for Writ of Certiorari should be granted.

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Respectfully submitted,



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